

CREDIT AGREEMENT

Dated as of March 15, 2024

BORROWER: TechCorp International, Inc., a Delaware corporation
GUARANTORS: TechCorp Holdings LLC; TechCorp Operating LLC
ADMINISTRATIVE AGENT: First National Bank, N.A.
LENDERS: The several lenders from time to time party hereto

AGGREGATE COMMITMENTS: \$200,000,000
FACILITY TYPE: Senior Secured Revolving Credit Facility
CLOSING DATE: March 15, 2024
MATURITY DATE: March 15, 2029

As amended by Amendment No. 1 dated January 10, 2025

Amended provisions are shown in red. Deleted provisions are shown in strikethrough.

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ARTICLE VI — FINANCIAL COVENANTS

Section 6.01 Maximum Leverage Ratio

The Borrower shall not permit the Leverage Ratio, as of the last day of any fiscal quarter ending on or after March 31, 2024, to be greater than

~~4.00~~ 4.50 to 1.00.

Test frequency: Quarterly (as of the last day of each fiscal quarter)

Schedule start: March 31, 2024

Maturity date: March 15, 2029

Grace period: None — tested as of the applicable quarter-end date

Section 6.02 Minimum Interest Coverage Ratio

The Borrower shall maintain the Interest Coverage Ratio of not less than

2.25 2.50 to 1.00, measured on a trailing twelve-month basis.

Test frequency: Quarterly (each fiscal quarter end)

Schedule start: March 31, 2024

Maturity date: March 15, 2029

Grace period: 30 days following written notice from Administrative Agent

Section 6.03 Minimum Liquidity

The Borrower shall maintain, at all times, unrestricted cash and Cash Equivalents of not less than \$25,000,000 (twenty-five million U.S. dollars).

Test frequency: Continuous; confirmed monthly as of the last Business Day

Schedule start: Closing Date (March 15, 2024)

Maturity date: March 15, 2029

Grace period: 5 Business Days

Section 6.04 Maximum Capital Expenditures

The Borrower shall not permit Capital Expenditures in any fiscal year to exceed

~~\$30,000,000~~ \$40,000,000 in the aggregate.

Test frequency: Annually (fiscal year end, December 31)

Schedule start: Fiscal year ending December 31, 2024

Maturity date: March 15, 2029

Grace period: None

ARTICLE VII — NEGATIVE COVENANTS

Section 7.01 Indebtedness

The Borrower shall not, and shall not permit any Restricted Subsidiary to, create, incur, assume or otherwise become liable for any Indebtedness, except:

- (a) Indebtedness under this Agreement and the other Loan Documents;
- (b) Existing Indebtedness listed on Schedule 7.01 as of the Closing Date;
- (c) purchase money Indebtedness and Capital Lease Obligations not to exceed, in the aggregate at any time, ~~\$10,000,000~~ **\$15,000,000** .
- (d) unsecured intercompany Indebtedness among the Borrower and its Subsidiaries.

Section 7.02 Liens

The Borrower shall not create, incur, assume or permit any Lien upon any of its property or assets, whether now owned or hereafter acquired, except Permitted Liens.

Section 7.03 Restricted Payments

The Borrower shall not declare or pay any cash dividend or distribution, except:

- (a) dividends payable solely in Equity Interests of the Borrower;
- (b) cash dividends not to exceed, in any fiscal year, ~~\$5,000,000~~ **\$8,000,000** , provided no Default or Event of Default exists at the time of payment;
- (c) repurchases of Equity Interests from departing employees, not to exceed ~~\$2,000,000~~ **\$3,000,000** per fiscal year.

Section 7.04 Mergers and Acquisitions

The Borrower shall not merge with or into, or acquire any Person, unless:

- (a) the Borrower is the surviving or resulting entity;
- (b) no Default or Event of Default has occurred and is continuing;
- (c) aggregate consideration does not exceed \$50,000,000 in any fiscal year.

Section 7.05 Asset Dispositions

The Borrower shall not sell, transfer, lease or otherwise dispose of assets except:

- (a) dispositions of obsolete equipment in the ordinary course of business;
- (b) sales of inventory in the ordinary course of business;
- (c) other asset sales not to exceed ~~\$20,000,000~~ **\$30,000,000** in the aggregate per fiscal year.

ARTICLE VIII — AFFIRMATIVE COVENANTS

Section 8.01 Insurance

The Borrower shall maintain, with financially sound and reputable companies, insurance with respect to its properties and business in such amounts as are customarily maintained by Persons engaged in the same or similar business.

Amendment No. 1 addition: The Borrower shall also maintain cyber liability insurance with limits of no less than \$10,000,000 per occurrence.

Section 8.02 Payment of Taxes

The Borrower shall pay and discharge all material taxes, assessments and governmental charges before they become delinquent, subject to the right to contest such items in good faith by appropriate proceedings.

Section 8.03 Maintenance of Properties

The Borrower shall maintain and preserve all material properties in good working order and condition, ordinary wear and tear excepted.

Section 8.04 Compliance with Laws

The Borrower shall comply in all material respects with all applicable laws, regulations, orders and requirements of any Governmental Authority.

ARTICLE IX — REPORTING COVENANTS

Section 9.01 Financial Statements

The Borrower shall deliver to the Administrative Agent:

- (a) Quarterly: within 45 days after each of the first three fiscal quarters, unaudited consolidated financial statements prepared in accordance with GAAP;
- (b) Annual: within 90 days after each fiscal year end, audited consolidated financial statements certified by independent registered public accountants;
- (c) Management Discussion and Analysis accompanying each set of financials.

Section 9.02 Compliance Certificate

Together with the financial statements required under Section 9.01(a) and (b), a Compliance Certificate signed by a Responsible Officer demonstrating compliance with each Financial Covenant in Article VI and setting out the applicable ratios.

Section 9.03 Notices

Promptly upon obtaining knowledge, notify the Administrative Agent of:

- (a) any Event of Default or Potential Default;
- (b) any pending or threatened litigation with potential liability over \$5,000,000;
- (c) any Material Adverse Change.

ARTICLE X — EVENTS OF DEFAULT

Section 10.01 Events of Default

Each of the following shall constitute an Event of Default:

- (a) Payment Default: failure to pay any principal when due; or failure to pay interest, fees or other amounts within 5 Business Days of the due date;
- (b) Representation Default: any representation or warranty made herein proves false or misleading in any material respect when made or deemed made;
- (c) Financial Covenant Default: failure to comply with any covenant in Article VI; no cure period applies to Financial Covenant defaults;
- (d) Other Covenant Default: failure to comply with any other covenant or obligation within 30 days after written notice from Administrative Agent;
- (e) Cross-Default: default under any other Indebtedness in excess of \$10,000,000;
- (f) Insolvency: commencement of bankruptcy, insolvency, or similar proceedings and, if involuntary, not dismissed within 60 days of filing;
- (g) Judgment Default: entry of judgments in excess of \$10,000,000 in aggregate, not stayed or discharged within 30 days;
- (h) Change of Control: any Person acquires beneficial ownership of more than 50% of the voting Equity Interests of the Borrower.

Section 10.02 Remedies

Upon the occurrence and continuation of an Event of Default, the Administrative Agent may, upon the instruction of the Required Lenders, declare all Loans immediately due and payable and exercise all other rights and remedies available under this Agreement and applicable law.

[Signature pages follow]